

5. 9:00 AM CASE NUMBER: C23-01402
CASE NAME: QUANTUM INTERNATIONAL LLC VS. DOES 1 TO 10
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AMBERWOOD CONCORD HOMEOWNER'S ASSOCIATION
TENTATIVE RULING:

Having received no timely opposition, the demurrer is sustained with leave to amend.

6. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
*HEARING ON MOTION IN RE: CONSOLIDATION OF ACTIONS
FILED BY: BROWS, KIKI
TENTATIVE RULING:

Plaintiff Kiki Brows ("Plaintiff") brings the instant motion to consolidate in an effort to consolidate this matter (C25-00261), with a pending unlawful detainer action that was filed by defendant Ramanujan Group ("Defendant") in this same court (*Ramanujan LLC v Kawaldeep Singh Sethi individually and DBA Kiki Brows*, case no. N25-1537).

For the reasons set forth below, the motion to consolidate is **denied**.

Background

Plaintiff and its prior landlord entered into a lease agreement around June 14, 2013. (Motion to Consolidate, p. 3.) Those same parties amended the lease around December 2018. (Opposition, p. 3.) In October 2023, Plaintiff and Defendant (as successor in interest to the prior landlord), entered into a second amended lease extension, which extended the lease until November 2024. (Motion, p. 3; Opposition, p. 3.)

Plaintiff asserts that the lease was renewed once more, and that it made a minimum annual rent payment in reliance on that. (Motion, p. 4.) Defendant disputes this and asserts that it served a notice of termination of lease in March 2025, and that Plaintiff thereafter failed to surrender possession of the property. (Opposition, p. 3.)

On January 29, 2025, Plaintiff filed the initial complaint in this matter. On August 14, 2025, Plaintiff filed a first amended complaint, which asserts claims for breach of contract, fraud, and detrimental reliance. (Plaintiff's First Amended Complaint, ¶¶ 1-32.) On August 4, 2025, Defendant filed the unlawful detainer action. (Defendant's Unlawful Detainer Complaint, ¶¶ 1-19.)

Legal Standard

Code of Civil Procedure section 1048 provides, "When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning

proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048, subd. (a).) The decision to consolidate is left to the discretion of the trial court. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 [“Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court’s decision will not be disturbed on appeal absent a clear showing of abuse of discretion.”].)

The Court in *Askew v. Askew* (1994) 22 Cal.App.4th 942, explained: “A motion to consolidate under section 1048 of the Code of Civil Procedure is predicated on the assumption that two or more actions already ‘involv[e] a common question of law or fact.’ The motion requests the court to exercise its *discretion* to consolidate the actions (the court ‘*may* order a joint hearing or trial of any or all the matters in issue in the actions,’ italics added). Therefore, it is possible that actions may be thoroughly ‘related’ in the sense of having common questions of law or fact, and still not be ‘consolidated,’ if the trial court, in the sound exercise of its discretion, chooses not to do so.” (*Id.* at 964 [italics in original].)

Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of the case files and all filings from the instant civil action and the unlawful detainer action. (Plaintiff RJN, ¶¶ 1-2.) The Court grants the unopposed request, subject to the limitations on judicial notice. (Evid. Code, § 452, subd. (d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of pleadings extends to the fact of the filings but not the truth or interpretation of the content of the filings to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].)

Notice of Motion Filing Requirement

California Rules of Court, rule 3.350(a), requires the notice for a motion for consolidation to be filed in each case sought to be consolidated. Here, Plaintiff has not filed notice of this motion in the unlawful detainer case. However, the Court will disregard this defect and proceed to the merits of this motion in light of its view that this defect does not affect the substantial rights of the parties. This is because the attorneys in the civil matter are the same as in the unlawful detainer matter and also because Defendant did not raise this issue in its opposition. (Code Civ. Proc., § 475 [“The court must, in every stage of an action, disregard any error, improper ruling, instruction, or defect, in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties.”].)

Analysis

Plaintiff argues that the Court should grant its motion to consolidate because not doing so would force it to present its case in the civil matter as a defense in the unlawful detainer action. (Motion, p.6.) “Kiki Brows should not be forced to litigate complex issues of contract law, renewal, ad leasehold interest in the truncated procedures of the unlawful detainer process which are limited to simple disputes of possession. The Civil Matter is complex and making Kiki Brows argue it as a defense in a summary proceeding is the exact type of prejudice contemplated by *Martin-Bragg*.” (*Id.* at pp. 6:28-7:4.) Plaintiff correctly points out that the instant case and the unlawful detainer case involve the same parties, the same lease, the same premises, and the validity of the alleged renewal after

November 30, 2024. (*Id.* at p. 7.) Plaintiff analogizes the situation here with the fact patterns in the cases *Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367 and *Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, and argues that those cases support consolidating the instant matter with the unlawful detainer matter as the issues here are similarly complex. (Motion, pp. 5-7.)

Defendant argues that the civil and unlawful detainer matters are factually different and involve different legal theories. (Opposition, p. 4.) Defendant further argues that the two cases relied on by Plaintiff are distinguishable from the present facts. (*Id.* at pp. 4-5.)

On reply, Plaintiff argues that Defendant only discussed the causes of action in the unlawful detainer and the instant case being different, not the facts, and that Plaintiff would be prejudiced if the unlawful detainer could move forward on its own. (Reply, pp. 2-3.) Plaintiff also argued that there would be no confusion from consolidating. (*Id.* at p. 3.)

The Court notes that the two main cases Plaintiff relies on, *Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367, and *Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, both deal with consolidating civil matters containing claims relating to title of real property with unlawful detainers. “The law affords substantial procedural rights to litigants in cases involving adjudication of complex issues of legal and beneficial title to property. Moore’s enjoyment of those rights was compromised by the trial court’s insistence on trying those complex issues using the summary procedures that are approved only for the determination of a landlord’s right to possession in straightforward unlawful detainer proceedings.” (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 394-395.) In *Greenhut*, the court stated, “[d]ue to the complexities of this case and the need to quiet title on the way to determining all of the issues, the most judicious approach would have been a consolidation of the three cases.” (*Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, 69.)

Here, there are no issues involving title to real property, making *Martin-Bragg* and *Greenhut* distinguishable from the instant matter on that basis. Further, Plaintiff only seeks monetary damages in this lawsuit, not declaratory relief, not specific performance of any contract, not possession of any property. (Plaintiff’s First Amended Complaint, pp. 5-6, prayer for relief.) The unlawful detainer, in contrast, seeks possession of the property at issue.

Thus, although the cases have significant overlap—such as whether the lease was renewed and the validity of Defendant’s May 2025 attempt to terminate the lease—they both seek different remedies. This Court feels that the central issue here, whether the lease was renewed or not, and the validity of the alleged termination of the lease, may properly be litigated in an unlawful detainer case, and declines to exercise its discretion to consolidate the two cases at this time.

The Court notes that the pleadings in the instant matter are not yet settled, as Defendant has filed a demurrer and motion to strike that are set for hearing in mid-March. Further development of this case may merit the Court revisiting consolidation at a later date.

Ruling

The Court exercises its discretion to **deny** consolidation for the reasons stated herein, **without prejudice** to renewal of a consolidation motion if subsequent developments warrant.